

Imamun Nisha v. State of U.P.

Allahabad High Court · Division Bench · 27 January 2025 · 2025:AHC:13857-DB · Writ-C No. 42789 of 2024 · **Writ disposed of; Clause 6.5 representation to be decided in 10 days.**

HEADNOTE

Writ against an electricity demand notice disposed of on the licensee's statement that the consumer's objection would be treated as a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and decided within ten days, with no coercive action until then.

FACTUAL SUMMARY

The petitioner received a Demand Notice dated 1 September 2024 and approached the Electricity Department contending that the notice had been sent to her erroneously. She then filed this writ petition. Counsel for the Electricity Department stated that the objection already moved would be treated as an objection or representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, decided within ten days, and that no coercive action would be taken in the meantime.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection treated as Clause 6.5 representation

HOLDING

An objection to a demand notice already moved before the Electricity Department is to be treated as a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and decided within ten days; no coercive action is to be taken until the representation is decided or that period expires, whichever is earlier.

¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 01.09.2024 WAS SENT ERRONEOUSLY, AND THE MERITS OF THE DEMAND

Left to the Clause 6.5 authority to decide the representation within ten days. ¶ 2-3